

FOR COURT USE ONLY

PLAINTIFF/DEMANDANTE (name and street address of each):

Telephone No.:

DEFENDANT/DEMANDADO (name and street address of each):

Telephone No.:

☐ See attached sheet for additional plaintiffs and defendants.

ORDER TO PRODUCE STATEMENT OF ASSETS AND TO APPEAR FOR EXAMINATION

Instructions to the judgment creditor (the party who won the case and is owed money) for completing this form:

- Complete the application on page 2 to ask the court to require the judgment debtor (the person or business who lost the case and owes money) to come to court with a completed *Judgment Debtor's Statement of Assets* (form SC-133) and answer questions about their money and property.
- Do not use this form if *Notice of Entry of Judgment* (form SC-130 or SC-200) says the judgment concerns consumer debt. Use *Application and Order to Produce Financial Statement or Appear for Examination—Consumer Debt* (form SC-136) instead.
- Read *What to Do After the Court Decides Your Small Claims Case* (form SC-200-INFO) for help choosing the correct form and for information about steps you must take after the court decides your case.

1. TO JUDGMENT DEBTOR (name):

If the judgment debtor is a corporation, partnership, or other organization, they should read the notice on page 3 of form AT-138/EJ-125.

2. YOU ARE ORDERED

- to pay the judgment and file proof of payment (a canceled check or money order or cash receipt, and a written declaration that shows full payment of the judgment, including postjudgment costs and interest) with the court before the hearing date shown in the box below, **OR**
- to
 - personally appear in this court on the date and time shown below, and
 - bring with you a completed *Judgment Debtor's Statement of Assets* (form SC-133).

At the hearing, you will be required to

- answer questions about your money and property; and
- explain why you did not complete and mail form SC-133 to judgment creditor in a timely manner. (*You should have sent it within 30 days after the Notice of Entry of Judgment (form SC-130) was mailed or handed to you by the clerk.*)

**Hearing
Date**

→ Date: _____ Time: _____
Dept.: _____ Room: _____

Name and address of court if different from above:

If you fail to appear and have not paid the judgment, including postjudgment costs and interest, a bench warrant may be issued for your arrest, you may be held in contempt of court, and you may be ordered to pay penalties.

Si no asiste a la audiencia y no ha pagado el monto del fallo judicial, incluyendo los costos e intereses posteriores al fallo, la corte puede emitir una orden de arresto contra usted, declararle en desacato, y ordenar que pague multas.

3. This order may be served by a sheriff, marshal, or registered process server.

Date: _____



(SIGNATURE OF JUDGE)

This order must be served no less than 30 days before the date set for the examination.

APPLICATION FOR THIS ORDER

4. Judgment creditor (the person who won the case) (*name*): _____ applies for an order requiring judgment debtor (the person or business who lost the case and owes money) (*name*): _____ to (1) pay the judgment or (2) personally appear in this court with a completed *Judgment Debtor's Statement of Assets* (form SC-133), explain why judgment debtor did not pay the judgment or complete and mail form SC-133 to judgment creditor within 30 days after *Notice of Entry of Judgment* (form SC-130 or SC-200) was mailed or handed to judgment debtor, and answer questions about judgment debtor's money and property.
5. I, judgment creditor, state the following:
- Judgment debtor has not paid the judgment.
 - Judgment debtor either did not file an appeal, or the appeal has been dismissed, or judgment debtor lost the appeal.
 - Judgment debtor either did not file a motion to vacate, or the motion to vacate has been denied.
 - More than 30 days have passed since *Notice of Entry of Judgment* was mailed or delivered to judgment debtor.
 - I have not received a completed *Judgment Debtor's Statement of Assets* (form SC-133) from judgment debtor.
 - Judgment debtor resides or has a place of business in this county or within 150 miles of the place of examination.
6. ☐ *Notice of Entry of Judgment* (form SC-130 or SC-200) **does not say** the judgment includes an amount "concerning consumer debt (Code Civ. Proc., § 708.111)."

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: _____

(TYPE OR PRINT NAME)

(DECLARANT)

INSTRUCTIONS FOR APPLICANT

Most counties are required to have a Small Claims Advisor to give free legal information in small claims cases.

- This form is intended to be an easy tool to enforce your right to receive a completed *Judgment Debtor's Statement of Assets* (form SC-133). If you only want to ask the court to order the judgment debtor to come to court for an examination (answering questions about their money and property) and you do **not** want to enforce your right to receive a completed *Judgment Debtor's Statement of Assets* (form SC-133), use *Application and Order for Appearance and Examination* (form EJ-125). If you have already examined this judgment debtor and want to ask for another examination, use form EJ-125.
- Complete item 1 on page 1 and items 4 and 5 on page 2 of this form, then contact the court clerk to schedule a hearing date and location. Enter the hearing time, date, and location you received from the clerk in the "Hearing Date" section on page 1. Sign and date the form. Make at least one copy of the completed form for your records.
- File the completed original form SC-134 with the court and pay the filing fee.
- If you want to be able to ask the court to enforce the order on the judgment debtor (the person or business who lost the case and owes money), you must have a copy of this form and a blank copy of *Judgment Debtor's Statement of Assets* (form SC-133) served on the judgment debtor in person by a sheriff, marshal, or registered process server at least **30 calendar days** before the date of the hearing, and have the original proof of service filed with the court. If you reset the hearing, you will have to pay a new filing fee.
- You must attend the hearing unless the judgment has been paid. Bring a copy of your completed form SC-134 with you to the hearing.



Request for Accommodations. Assistive listening systems, computer-assisted real-time captioning, or sign language interpreter services are available if you ask at least five days before your hearing. Contact the clerk's office or go to www.courts.ca.gov/forms for *Disability Accommodation Request* (form [MC-410](#)). (Civil Code, § 54.8.)